



MUTUAL ARBITRATION AGREEMENT

Wrrapd, Inc. and WrapStar Contractor **Companion document** to the WrapStar Independent Contractor Technology Services Agreement

This Mutual Arbitration Agreement (the "**Arbitration Agreement**") is entered into by and between **Wrrapd, Inc.**, with notice and legal address at **7901 4th Street N, Ste. 300, St. Petersburg, FL 33702-4399** ("**Wrrapd**") and the undersigned individual or entity ("**Contractor**"). It forms part of, and is incorporated into, the WrapStar Independent Contractor Technology Services Agreement between the Parties (the "**Services Agreement**"). Capitalized terms not defined here have the meanings given in the Services Agreement.

1. Mutual Agreement to Arbitrate

1.1 Except as expressly provided in Section 5 (Carve-Outs), **Wrrapd and Contractor mutually agree** that any and all disputes, claims, or controversies arising out of or relating to: (a) the Services Agreement or any Companion Document; (b) Contractor's application, onboarding, screening, engagement, compensation, suspension, or termination; (c) the Platform, the **WrapStar App**, or the Services; (d) download, access, use, or unavailability of the WrapStar App; or (e) any other aspect of the relationship between Contractor and Wrrapd--whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory (each, a "**Dispute**")--shall be resolved exclusively by **binding individual arbitration**, and not by court or jury trial (except as Section 5 allows).

1.2 This Arbitration Agreement is mutual: both Parties are bound to arbitrate Disputes on the terms set forth herein.

1.3 The Federal Arbitration Act, 9 U.S.C. § 1 *et seq.*, governs the interpretation and enforcement of this Arbitration Agreement.

2. Governing Law; Seat; Locale

2.1 This Arbitration Agreement and any arbitration hereunder shall be governed by the laws of the **State of Florida**, without regard to conflict-of-law principles that would defeat the Parties' choice of Florida law or the seat specified herein, except where the Federal Arbitration Act controls.

2.2 The **seat of arbitration** shall be **Duval County, State of Florida**.

2.3 Hearings may be conducted in Duval County, Florida, or, by agreement of the Parties or order of the arbitrator, by videoconference or other remote means, provided that the legal seat remains Duval County, Florida.

2.4 If any Dispute proceeds in court notwithstanding this Arbitration Agreement (including under Section 5 or upon a final determination that a claim is non-arbitrable), the Parties consent to the **exclusive jurisdiction and venue** of the state or federal courts located in **Duval County, Florida**, and waive any objection based on inconvenient

forum.

3. Administrator; Rules; Initiation

3.1 Arbitration shall be administered by the **American Arbitration Association ("AAA")** under its Commercial Arbitration Rules (or, if AAA determines they apply, its Consumer Arbitration Rules), as modified by this Arbitration Agreement. If AAA is unavailable or unwilling to administer the arbitration, the Parties shall use **JAMS** under its applicable Comprehensive or Streamlined Rules. If neither is available, the Parties shall select a mutually agreeable arbitrator in Duval County, Florida; if they cannot agree within thirty (30) days, a court in Duval County, Florida may appoint an arbitrator.

3.2 A Party may initiate arbitration by filing a demand with the administrator in accordance with its rules and providing notice to the other Party as required by the Services Agreement or applicable law.

3.3 The arbitrator shall be a licensed attorney or retired judge with experience in commercial disputes. The arbitration shall be conducted in English.

4. Individual Claims Only; Class Action Waiver; Jury Waiver

4.1 **Individual arbitration only.** The Parties agree to arbitrate solely on an **individual** basis. There shall be no class, collective, coordinated, consolidated, or representative arbitration or litigation. The arbitrator may not preside over any form of representative or class proceeding.

4.2 **Class and collective action waiver.** Contractor and Wrrapd each waive any right to participate as a class or collective member or representative in any class, collective, or representative proceeding against the other relating to a Dispute.

4.3 **Jury trial waiver.** To the fullest extent permitted by law, each Party waives any right to a jury trial for any Dispute.

4.4 **Severability of waiver.** If a court or arbitrator determines that the class/collective waiver in this Section 4 is unenforceable as to a particular claim, that claim (and only that claim) shall proceed in court in Duval County, Florida, and not in arbitration. All other arbitrable claims remain subject to arbitration.

5. Carve-Outs

Notwithstanding Section 1, either Party may:

5.1 Seek **temporary, preliminary, or permanent injunctive or other equitable relief** in a court of competent jurisdiction in Duval County, Florida, to protect intellectual property, Confidential Information, Platform or WrapStar App integrity, or customer goods in wrapping custody (including claims relating to theft, conversion, or unauthorized retention of goods), without waiving the right to arbitration of related damages claims;

5.2 Bring an individual action in **small claims court** in Duval County, Florida (or the small claims court of competent jurisdiction for the claim), if the claim qualifies and remains individual; and

5.3 Pursue claims that applicable law prohibits from being subject to predispute arbitration, but only to the minimum extent so required.

6. Arbitrability; Authority of Arbitrator

6.1 Except as to the enforceability of the class/collective waiver (which may be determined by a court), the arbitrator shall decide all issues of arbitrability, including the scope, enforceability, and interpretation of this Arbitration Agreement, to the fullest extent permitted by law.

6.2 The arbitrator may award any individual relief available in court under applicable law, including damages, declaratory relief, and individual injunctive relief. The arbitrator shall apply Florida substantive law (and applicable federal law) as provided in Section 2.

6.3 The arbitrator's award shall be in writing and may be entered as a judgment in any court of competent jurisdiction.

7. Fees and Costs

7.1 Administrative and arbitrator fees shall be allocated as provided by the applicable AAA or JAMS rules, except that Wrrapd will not seek to recover its arbitration filing or arbitrator fees from Contractor if Contractor is the individual claimant initiating a good-faith Dispute, unless the arbitrator finds the claim frivolous or brought for an improper purpose.

7.2 Each Party shall bear its own attorneys' fees and costs unless a statute, contract provision, or the arbitrator's rules provide otherwise, or the arbitrator awards fees as a sanction for frivolous or bad-faith conduct.

8. Confidentiality of Proceedings

Except as required by law or to enforce an award, the Parties shall maintain the confidentiality of the arbitration proceedings and award, without limiting either Party's ability to disclose information to legal counsel, insurers, auditors, or as needed for legitimate business or regulatory purposes.

9. Survival

This Arbitration Agreement survives termination of the Services Agreement and the Parties' relationship, and applies to Disputes whether arising before or after termination.

10. Entire Arbitration Agreement; Severability

10.1 This Arbitration Agreement is the complete agreement regarding arbitration of Disputes and supersedes prior arbitration agreements between the Parties relating to the WrapStar relationship, except that it does not limit any arbitration provision in customer-facing terms to which Contractor is not a party.

10.2 Except as provided in Section 4.4, if any provision of this Arbitration Agreement is held unenforceable, the remaining provisions shall continue in full force and effect.

Electronic Acceptance

This Arbitration Agreement is accepted electronically together with the Services Agreement under the ESIGN Act. No Company countersignature on Contractor's individual copy is required. Contractor's **I Accept** (or equivalent electronic assent) in the Wrrapd onboarding Platform binds Contractor; Wrrapd's assent is manifested by presenting these terms and by activating Platform access.